IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

TreeFrog Development, Inc., Opposer,	)	Opposition No. 91232860
v.	)	App. No. 86905410
Sakar International, Inc., Applicant.	)	Mark: LIFEJACKET

OPPOSER'S REBUTTAL BRIEF

Redacted Version

Heather J. Kliebenstein
Eric R. Chad
MERCHANT & GOULD P.C.
3200 IDS Center
80 South Eighth Street
Minneapolis, MN 55402

(612) 332-5300

November 29, 2018

TABLE OF AUTHORITIES

Page(s)

Cases

Cunningham v. Laser Golf Corp., 55 U.S.P.Q.2d 1842 (Fed. Cir. 2000).....2

Empresa Cubana Del Tabaco v. Gen. Cigar Co., 111 U.S.P.Q.2d 1058 (Fed. Cir. 2014).....2

Herbaceuticals, Inc. v. Xel Herbaceuticals, Inc., 86 U.S.P.Q.2d 1572 (TTAB 2008).....5

Hornby v. TJX Cos., Inc., Cancellation No. 92044369, 2008 WL 1897568 (TTAB Apr. 22, 2008).....4

In re Cook Med. Techns. LLC, 105 U.S.P.Q.2d 1377 (TTAB 2012).....3

In re H.D. Vest, Inc., Ser. No. 77599306, 2011 WL 481330 (TTAB Jan. 31, 2011).....3

Interstate Brands Corp. v. McKee Foods Corp., 53 U.S.P.Q.2d 1910 (TTAB 2000).....3

J.E.M. Int'l Inc. v. Happy Rompers Creations Corp., 74 U.S.P.Q.2d 1526 (TTAB 2005).....5

Lipton Indus., Inc. v. Ralston Purina Co., 213 U.S.P.Q. 185 (CCPA 1982).....2

N.Y. Yankees P'ship v. IET Prods. & Servs., Inc., 114 U.S.P.Q.2d 1497 (TTAB 2015).....2

Ritchie v. Simpson, 50 U.S.P.Q.2d 1023 (Fed. Cir. 1999).....2

Warner Bros. Entm't, Inc. v. Kaplan Tr., Cancellation No. 92043813, 2007 TTAB LEXIS 194 (TTAB Aug. 22, 2007).....4

Wet Seal Inc. v. FD Mgmt. Inc., 82 U.S.P.Q.2d 1629 (TTAB 2007).....4

Statutes

15 U.S.C. § 1052(d).....1, 3, 4

I. INTRODUCTION

The purpose of Opposition proceedings based on allegations of likelihood of confusion is focused on issues surrounding the impact of registration of a contested mark on the Principal Register. Applicant, likely recognizing the weaknesses of its position, attempts to draw the Board's attention to a number of irrelevant factors—i.e., the volume of sales of the parties' respective LIFEJACKET products, whether speakers were within Opposer's natural zone of expansion in 2014, and whether the parties' LIFEJACKET products presently appear side-by-side at brick-and-mortar retailers. But the fact remains that what matters, and what this case is about, is whether registration of Applicant's LIFEJACKET mark is likely to cause consumer confusion, mistake or deception and damage Opposer.

This case is not about counterfeiting—whether consumers will think Applicant's LIFEJACKET speaker cases are Opposer's LIFEJACKET mobile device cases. This case is about whether consumers will mistakenly believe Applicant's goods come from Opposer or the source of Opposer's goods. This case is not about whether the parties' goods are side-by-side on shelves today. This case is about whether the use of Applicant's applied-for mark on Applicant's recited goods creates the risk of a likelihood of consumer confusion or mistake (today or in the future) as to the source of Applicant's goods.

This case is not about the state of the market in 2014 (Applicant's date of first use). The date restrictions Applicant seeks to apply to Opposer's evidence is based on Applicant's erroneous reliance on "zone of expansion" law, instead of law addressing the *duPont* factors. This case is about the entirety of the record presented by Opposer, most of which Applicant failed to address. Applicant did not present the Board with any counter-evidence. The record proves registration of LIFEJACKET to Applicant would be counter to 15 U.S.C. § 1052(d). This opposition should be sustained and the Board should refuse registration of Applicant's mark.

II. OPPOSER HAS STANDING THROUGH ITS OWNERSHIP OF AN INCONTESTABLE REGISTRATION AND CONTINUOUS USE OF THE LIFEJACKET MARK IN COMMERCE SINCE AT LEAST AS EARLY AS 2012.

Applicant suggests the Board can dispose of this opposition because Opposer has essentially abandoned its mark. To establish standing in an opposition, a plaintiff must prove that it has a "real interest," i.e., a "reasonable" basis for its belief of damage. *Empresa Cubana Del Tabaco v. Gen. Cigar Co.*, 111 U.S.P.Q.2d 1058, 1062 (Fed. Cir. 2014); *Ritchie v. Simpson*, 50 U.S.P.Q.2d 1023, 1025 (Fed. Cir. 1999); *Lipton Indus., Inc. v. Ralston Purina Co.*, 213 U.S.P.Q. 185, 189 (CCPA 1982). Applicant, in its brief, does not contest Opposer's standing.

Opposer has established its standing by properly introducing into evidence its pleaded incontestable registration. *See, e.g.*, *Cunningham v. Laser Golf Corp.*, 55 U.S.P.Q.2d 1842, 1844 (Fed. Cir. 2000); *N.Y. Yankees P'ship v. IET Prods. & Servs., Inc.*, 114 U.S.P.Q.2d 1497, 1501 (TTAB 2015). Opposer is to be afforded all presumptions given to an incontestable registration. Abandonment has not been pled by Applicant nor proven. Notwithstanding, Opposer has introduced evidence of common law use of its LIFEJACKET mark. (32 TTABVUE 2-4.) That same evidence shows Opposer has not abandoned its mark. Specifically, [images omitted from this transcription]. An example is end cap displays in Opposer's retail locations, shown below:[1] [images omitted from this transcription]. (Decl. of Jordan Vater ("Vater Decl.") ¶ 10.) The LIFEJACKET products are in the lower right corner of each display, in packaging showing a bright orange case.

Opposer also featured its LIFEJACKET products at the annual Consumer Electronics Show (CES) since 2012. (*Id.* at 4.)

[1] Applicant contends (37 TTABVUE 10) that Opposer has never displayed the LIFEJACKET cases at retail. These images show Applicant's assertion is false.

III. APPLICANT'S LIFEJACKET MARK, ON APPLICANT'S GOODS, IS LIKELY TO CAUSE CONFUSION, MISTAKE OR DECEPTION.

Applicant's brief focuses on proving that Applicant's speaker cases are not mobile device cases. Applicant also focuses on the absence of confusion evidence; the absence of photographs of the parties' products directly side by side, today, on store shelves; and the alleged absence of commercial success of Opposer's LIFEJACKET product and decline in sales. All of these arguments are irrelevant in a Board proceeding under Section 2(d), which states:

> No trademark by which the goods of the applicant may be distinguished from the goods of others shall be refused registration on the principal register on account of its nature unless it— (d) Consists of or comprises a mark which so resembles a mark registered in the Patent and Trademark Office, or a mark or trade name previously used in the United States by another and not abandoned, as to be likely, when used on or in connection with the goods of the applicant, to cause confusion, or to cause mistake, or to deceive . . . . 15 U.S.C. § 1052(d).

The statute does not require a challenger to prove consumers believe one product is the other. It simply requires proof of likely confusion, mistake, or deception in general. Confusion, mistake, or deception as to the source of Applicant's goods is actionable under § 2(d). *In re Cook Med. Techns. LLC*, 105 U.S.P.Q.2d 1377, 1379 (TTAB 2012).

Although Opposer does not believe this is a close case, the senior user of a mark is entitled to the benefit of any doubt as to a likelihood of confusion under § 2(d) before the Board. *In re H.D. Vest, Inc.*, Ser. No. 77599306, 2011 WL 481330, at *5 (TTAB Jan. 31, 2011) ("To the extent there are any doubts, we resolve them, as we must, in registrant's favor."); *Interstate Brands Corp. v. McKee Foods Corp.*, 53 U.S.P.Q.2d 1910, 1915 (TTAB 2000) ("[O]ne who adopts a mark similar to the mark of another for the same or closely related goods or services does so at his own peril and any doubt as to the similarity of the marks must be resolved against him."). All *duPont* factors weigh in favor of sustaining this opposition.

A. Priority is Proven: Opposer Used the LIFEJACKET Mark Before Applicant.

Applicant claims it has priority because Applicant used LIFEJACKET on speaker cases first. (37 TTABVUE 12.) But the legal question is which party used the mark first, generally. 15 U.S.C. § 1052(d) (stating a party must prove that, *vis-à-vis* the other party, it owns "a mark or trade name previously used in the United States...and not abandoned"); *Warner Bros. Entm't, Inc. v. Kaplan Tr.*, Cancellation No. 92043813, 2007 TTAB LEXIS 194, at *6 (TTAB Aug. 22, 2007) (non-precedential). Applicant admits "with respect to protective cases for cell phones, smart phones[,] and tablet computers, [Opposer] has priority with respect to" the LIFEJACKET mark. (37 TTABVUE 12.) Opposer established priority for this proceeding.

IV. APPLICANT'S LIFEJACKET MARK IS ALSO CONFUSINGLY SIMILAR TO OPPOSER'S LIFEPROOF MARK.

Applicant does not challenge Opposer's registrations or priority date for Opposer's LIFEPROOF marks. (*See* 32 TTABVUE 40-41.) Applicant instead attacks Opposer's rights in its LIFEACTIV mark because it is not registered. A party may prevail on a claim of likelihood of confusion based on its ownership of common law rights in a mark where the mark is distinctive, inherently or otherwise, and the party can show priority of use based on prior trademark use. *Wet Seal Inc. v. FD Mgmt. Inc.*, 82 U.S.P.Q.2d 1629, 1634 (TTAB 2007). Here, Opposer has provided a specimen of the LIFEACTIV mark (32 TTABVUE at Vater Decl. Ex. 2), testimony regarding continuous use (Vater Decl. ¶ 11), and sales information showing sales of LIFEACTIV products back to 2015. (11 TTABVUE at Chad Decl. Ex. 12.) The evidence shows Opposer owns a family of LIFE marks: LIFEPROOF, LIFEJACKET and LIFEACTIV.

Applicant argues Opposer must prove the strength of its LIFEPROOF mark in 2014, not 2017. Applicant cites no case law for this proposition. There is none. Evidence supporting the *duPont* factors can be dated up through the time of trial. *See Hornby v. TJX Cos., Inc.*, Cancellation

No. 92044369, 2008 WL 1897568, at *4 (TTAB Apr. 22, 2008) ("[W]ith respect to the petitioner's likelihood of confusion claim, our determination is based on the factual situation as of the time of trial . . . ."). Opposer's evidence of the strength of its LIFEPROOF marks stands unrebutted. Given the fame of the LIFEPROOF mark, as well as Opposer's LIFE family of marks, consumers are likely to believe that Applicant's LIFEJACKET product—a mobile device accessory—comes from Opposer. The opposition should be sustained.

V. APPLICANT DOES NOT ADDRESS ITS FAILURE TO USE THE LIFEJACKET MARK ON THE GOODS IDENTIFIED IN ITS APPLICATION.

As Opposer explained in its opening brief, Applicant does not actually use its LIFEJACKET mark in connection with the sale of speaker cases despite the fact that Applicant's pending application is a use-based application for the LIFEJACKET mark used in connection with speaker cases. (32 TTABVUE 36.) Rather, Applicant sells speakers, and only speakers, under the LIFEJACKET mark. Speaker cases are not sold separately and are offered separately only as a replacement part. (*Id.*) In circumstances such as these, refusal of an application is proper. *J.E.M. Int'l Inc. v. Happy Rompers Creations Corp.*, 74 U.S.P.Q.2d 1526, 1530 (TTAB 2005) (non-precedential) ("[T]he USPTO will not issue a registration based on use covering goods upon which the mark has not been used, ..."); *Herbaceuticals, Inc. v. Xel Herbaceuticals, Inc.*, 86 U.S.P.Q.2d 1572, 1576 (TTAB 2008) (gathering cases). Far from providing persuasive authority rebutting this point, Applicant ignores it completely. This failure is significant and, by itself, warrants a refusal of Applicant's application.

VI. CONCLUSION.

As Opposer explained in its opening brief, an opposition should be sustained. Opposer proved that a likelihood of confusion, mistake or deception exists and Opposer will be damaged by registration of the mark at issue. For the reasons set forth above, as well as those articulated in

Opposer's opening brief and in connection with its motion for partial summary judgment, Opposer requests that the Board sustain the opposition and refuse registration to Applicant's application.

TREEFROG DEVELOPMENT, INC.
By its attorneys,

s/Heather J. Kliebenstein
Eric R. Chad
MERCHANT & GOULD P.C.
3200 IDS Center
80 South Eighth Street
Minneapolis, MN 55402
(612) 332-5300

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing OPPOSER'S REBUTTAL BRIEF was filed electronically and served on this 29th day of November, 2018, via email to:

Theodore R. Remaklus
Wood, Herron & Evans, L.L.P.
2700 Carew Tower
441 Vine Street
Cincinnati, Ohio 45202
tremaklus@whe-law.com

s/Abigail Krueger
Abigail Krueger